6.2) DIPPL (DECON INDIA PLASTICS PVT. LTD.) Reserves the right to inspect the goods after the receipt of ordered goods at the specified location. If DIPPL (DECON INDIA PLASTICS PVT. LTD.) ascertains deviations from an order or a bill of delivery, e.g. differences in quantity, quality shortcomings or damage caused by transportation, it may return the consignment or accept it without losing its legal rights.

6.3) Delivery of goods shall be made in accordance with DIPPL (DECON INDIA PLASTICS PVT. LTD.) Instructions. Supplier shall ensure that the delivered goods are accompanied by appropriate accompanying documents viz., packing list, bill of lading (in case of delivery from outside India), Original invoice, a document confirming the origin of goods and any other documents as required. Supplier shall compensate DIPPL (DECON INDIA PLASTICS PVT. LTD.) For damages it incurs as a result of the absence of the above mentioned documents.

6.4) The Supplier undertakes to perform and render all and any services, work and operations ordered through his own employees /authorized representatives employed pursuant to general legally binding regulations. Further, they undertake not to allow employees/workers/authorized representatives without valid documentation and permissions required to perform and render ordered services, work and operations.

7. Indemnification:

7.1) You agree that you shall save, indemnify and hold the Company / Its Directors/ Officers/ employees/ operators harmless against any and all claims, losses, damages, liabilities or expenses (including attorney..s fees) whatsoever for physical injury or death of any person and for loss or damage to any property, occurring in connection with the performance of your obligations hereunder, any breach of the terms and conditions of this purchase order or anything else to which we may become subject due to any action taken or any failure to act on your part, or in violation of the terms hereof or the applicable laws or regulations.

8. Termination:

8.1) DIPPL (DECON INDIA PLASTICS PVT. LTD.) Shall have a right to cancel or terminate this order:

(a) If you default in the due performance or observance of any of the obligations, covenants, conditions, warranties or provisions contained herein including but not limited to failure to supply and / or commission the above said goods/services conforming to our specifications, within the agreed delivery date .

(b) If any representation, warranty, information or statement made or deemed to be made by you, whether explicitly or not, proves to be untrue, incorrect or misleading in any material respect or if any event occurs as a result of which, if any of the aforesaid representations, warranties or statements were repeated immediately thereafter with reference to the facts subsisting at the time of such repetition, the same would be untrue, incorrect or misleading in any material respect;

(c) If there shall have occurred your dissolution or liquidation or any order is made or resolution, law or regulation passed or other action taken for your dissolution or liquidation or Supplier shall otherwise enter into liquidation;

(d) If Supplier apply for or agree to an arrangement with your creditors or any proceeding or arrangement by which a substantial part of your assets is submitted to the control of your creditors;

(e) If Supplier become or are declared by any Government Authority or any other competent authority to be insolvent or are unable or admit in writing your inability to pay your debts as they fall due or become subject to or apply for any suspension of payment, bankruptcy, insolvency or reorganization proceedings if such cessation in pour opinion has a material adverse effect on Supplier;

(f) If the consent of any Government Authority, required for the validity, enforceability or legality of the terms hereof ceases to be or is not for any reason in full force and effect or such performance becomes unlawful;

(g) If extra-ordinary circumstances have occurred which in our sole opinion make it improbable for Supplier to fulfill your obligations hereunder.

8.2) In case of cancellation or termination of this order, all the payments made to Supplier pursuant to the terms hereof shall become immediately due and payable to us, along with liquidated and other damages, Any cancellation or termination of this order shall not constitute a waiver by us of any obligation that by its terms shall survive such cancellation or termination or a waiver of any claim which we may have for actual damages caused by reason of, or relieve Supplier from liability for, any breach of the terms and conditions of this order prior to such termination or cancellation.

8.3) Supplier /Vendor/Service providers having major share of bussiness for series supplies to DeCon India & being responsible paticipant in the complete supply chain to end customers of DeCon India can only surrender the agreed bussiness in not less than six month by giving such prior written notice with sucessfull execution of agreed exit plan & aggrement .

Liability of the supplier from series supplies aggrement ends only after execution of mutually agreed exit plan & exit aggrement.

9. Force Majeure

9.1) Force majeure shall be deemed to be such circumstances arising after the contract has been executed as a result of unforeseeable, insurmountable and ineluctable by the Supplier events of an extraordinary nature occurring independent of the will of the Parties, such as a natural disaster or war. The Contracting Party who shall therefore be unable to fulfill contractual obligations must upon rise and termination of the afore-stated circumstances forthwith notify the other Party in writing and submit evidence proving that the circumstances substantially affected the execution of the supply agreed upon. The discovery of defective material, late sub deliveries or a strike shall not be deemed force majeure and therefore shall not constitute legitimate grounds for requesting delivery term extensions.

10. Protection of Rights

10.1) Supplier shall ensure that the goods delivered to us do not, when taken together or as individual elements, infringe intellectual property rights (arising from patents or industrial designs) of any third party and that the goods are not burdened by any third party rights in the Republic of India or abroad.

10.2) Supplier shall inform us of the use of all your own patents or industrial designs and the licensed use of third party patents and industrial designs on the goods delivered to us.

10.3) This shall not apply if Supplier produced the goods according to drawing, models or other comparable descriptions or information handed over by us and you do not know, or in connection with the products which you develop do not have to know, that it is infringing protected rights.

10.4) If so requested by us, Supplier shall inform us of the use of unpublished or licensed protected rights and applications for protected rights in the production of the goods.

10.5) Supplier may not use solutions and procedures which are our intellectual property for purposes other than the production of the goods for us.

10.6) Supplier may not apply for the registration of an invention or industrial design for any solution which is the intellectual property of us and was handed over to Supplier with documents or which was discovered during development work for us or during consultations with our specialists. No such solution may be recognized and remunerated as an improvement proposal. If Supplier obtain protected rights in a manner inconsistent with the previous paragraph Supplier shall immediately transfer them to us.